

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: August 6, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

FOR APPEARANCES: Department 1 is fully open for in-person hearings. The Court strongly prefers **in-person** appearances for all contested law and motion matters. For all other hearings, appearances must be **in-person or by video**. Department 1 uses Unicorn Digital Courtroom (UDC) platform. Please click on this link if you need to appear remotely and then scroll down to the link for Department 1: <https://santaclara.courts.ca.gov/online-services/remote-hearings>. This system requires advance registration with a case number and hearing date. **Telephonic appearances are prohibited, unless permitted by the Court.** (Local Rule 5). If you must appear virtually, you must use video.

SCHEDULING MOTION HEARINGS: Please go to <https://reservations.scscourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri). to reserve a hearing date for your motion before you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

FOR COURT REPORTERS: The Court is no longer able to provide official court reporters for civil proceedings (as of July 24, 2017). If you want to have a court reporter to report your hearing, you must submit the appropriate form, which can be found here:

https://www.scscourt.org/general_info/court_reporters.shtml

RECORDING IS PROHIBITED: As a reminder, most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

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LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
LINES 1-2	24CV451283	Micropoint Bioscience, Inc. et al vs Nan Zhang	Motion to Compel (Line # 1) and Motion to Compel (Line #2); OFF CALENDAR. On December 10, 2025, defendant Nan Zhang filed a motion to compel the plaintiff to respond to Form Interrogates, Special Interrogatories, Request for Production of Documents, and sanctions. The motion was accompanied by a proof of service indicating mail and electronic mail service on plaintiff's counsel. The motions are unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 24, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). Since the filing of these motions, Plaintiff's counsel withdrew as the attorney of record indicating loss of communication and the corporations being abroad. The Plaintiff has failed to appear on June 25, 2026, and the matter was set for an order to show cause dismissal of the case. On July 23, 2026, no appearance was made on behalf of the plaintiff and the case was dismissed. Thus, the motions here are rendered moot.
LINE 3	24CV452437	Michael Douglas vs Ford Motor Company et al	Motion for Summary Adjudication Scroll down to Line 3 for Tentative Ruling.
LINE 4	25CV463796	Discovery Bank vs Andrew Little	Motion to Vacate Judgment and Enter Dismissal Scroll down to Line 4 for Tentative Ruling.

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LAW AND MOTION TENTATIVE RULINGS

LINE 5	25CV465371	American Express National Bank vs Maryam Rafipour	Motion to Set Aside Default Judgment Scroll down to Line 5 for Tentative Ruling.
LINE 6	26CV484388	Rosette Simon et al vs EAH Housing Inc. et al	Demurrer Scroll down to Line 6 for Tentative Ruling.
LINE 7	24CV449313	Keith Lyle vs Ford Motor Company et al	Motion for Summary Judgment/Adjudication Scroll down to Line 7 for Tentative Ruling.

- 00000 -

9:01 A.M.			
LINE 1	23CV414336	Marissa Dominguez et al vs Marriot Hotel et al	Hearing on Minor's Compromise Parties to appear.

- 00000 -

9:00 A.M.

Calendar Line # 3

Case Name Michael Douglas vs Ford Motor Company et al

Case No. 24CV452437

Motion for Summary Adjudication

Before the court is defendant Ford Motor Company's motion for summary adjudication against plaintiff Michael Douglas's fifth cause of action. Pursuant to California Rule of Court, rule 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

Plaintiff Michael Douglas ("Douglas") filed a Complaint on November 22, 2024, against defendants Ford Motor Company ("Ford") and Future Ford Lincoln of Roseville seeking claims under the Song-Beverly Consumer Warranty Act (Civ. Code, § 1790, et seq; the "Act"). According to the Complaint, Plaintiff purchased a 2018 Ford F150, vehicle identification number: 1FTEW1EG2JFA32480 under warranty on March 3, 2018 (the "Subject Vehicle"). (Complaint, ¶ 10). Before Plaintiff purchased the vehicle, Ford knew that vehicles equipped with the same 10-speed transmission as the Subject Vehicle suffered from defects that would cause hesitation and/or delayed acceleration; harsh and/or hard shifting; jerking, shuddering, and/or juddering (the "Transmission Defect"). (*Id.* at ¶ 26).

Plaintiff alleges the following six causes of action against Ford: (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2, subdivision (a)(3); (4) breach of the implied warranty of merchantability; (5) fraudulent inducement – concealment; and (6) negligent repair.

Ford filed the instant motion for summary adjudication ("MSA") on May 14, 2026 that was accompanied by a proof of service indicating electronic mail service to the plaintiff's counsel. On May 27, 2026, the court granted Ford's *ex parte* application to advance the hearing on Ford's motion from September 8, 2026 to August 6, 2026 as this matter is set for a jury trial on September 8, 2026. Plaintiff filed timely written opposition, and Ford filed a timely reply.

The Court has carefully reviewed the Defendant's notice of motion (totaling 3 pages); memorandum of points and authorities (totaling 11 pages); Separate Statement (totaling 11 page); Declaration of Katherine P. Vilchez and Exhibits A-I in support of the defendant's motion for summary adjudication (totaling 109 pages); Declaration of Eric Kalis in support of the defendant's motion (totaling 5 pages); *ex parte* application to advance the MSA date; Amended Notice for MSA (totaling 3 pages); Opposition papers (totaling 14 pages); Separate Statement in Opposition (totaling 25 pages); request for judicial notice in support of the plaintiff's opposition to the MSA (totaling 63 pages); notice of lodging documents under seal (totaling 3 pages); redacted Declaration of Benjamin Fuchs in support of the plaintiff's opposition (totaling 15 pages); Declaration of Benjamin Fuchs in support of the plaintiff's opposition and Exhibit 1 (totaling 489 pages); Reply brief (totaling 12 pages); Defendant's responses and objections to plaintiff's separate statement of undisputed facts (totaling 17 pages); Defendant's response to plaintiff's request for judicial notice (totaling 31 pages); Defendant's evidentiary objections to Declaration of Fuchs (totaling 31 pages); Declaration of Haile M Rogerson in support of the MSA and attached Exhibits A-D (totaling 37 pages); proof of services; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 437c, subdivision (c), a motion for summary judgment or summary adjudication "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c)).

“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850). “There is a genuine issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th at p. 845, fn. omitted). Throughout the process, the trial court “must consider all of the evidence and all of the inferences drawn therefrom” and view the evidence and inferences in the light most favorable to the opposing party. (*Id.* at p. 844). The court cannot weigh the evidence on summary judgment or evaluate the credibility of declarants. (*Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 540).

Similarly, “[a] party may seek summary adjudication on whether a cause of action, affirmative defense, or punitive damages claim has merit or whether a defendant owed a duty to a plaintiff. [Citation]. ‘A motion for summary adjudication shall proceed in all procedural respects as a motion for summary judgment.’ [Citation].” (*California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630).

III. PROCEDURAL VIOLATIONS

A. PLAINTIFF’S DELAY IN SERVING THE DECLARATION OF BENJAMIN FUCHS

Ford avers that the court should disregard Plaintiff’s opposition and grant its MSA because Plaintiff failed to serve the Declaration of Benjamin Fuchs with his opposition. While Plaintiff timely served Ford with his unredacted opposition on July 17, 2026, Plaintiff did not serve the accompanying declaration until close of business on July 20, 2026. (Declaration of Hailey M. Rogerson, Exhs. A-B). Ford claims that it was unduly prejudiced because it was required to review over 400 pages of documents over four business days. The court notes, however, that Plaintiff’s counsel stated in his email containing the opposition that the exhibits to his declaration were “the standard *O’Connor* exhibits. . . so no surprises there.” (*Id.* at Exh. A). Ford contends in its reply that Mr. Fuchs’s declaration contains statements and evidence nearly identical to a supporting declaration in another matter, *John J. Whitney v. Ford*, a Santa Clara County Superior Court case bearing the case number 24CV436492. (Reply, p. 5:16-21).

California Rules of Court, rule 3.1300, subdivision (d) states, “No paper may be rejected for filing on the ground that it was untimely submitted for filing. If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must so indicate.”

Here, the Court balances the totality of circumstances, including judicial economy to avoid the expenditure of any further judicial resources, the court will look past the procedural violations and consider the motion and opposition on its merits. (*Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765 [“A trial court has broad discretion under rule 3.1300(d) of the California Rules of Court to refuse to consider papers served and filed beyond the deadline without a prior court order finding good cause for late submission.”]). However, the defendant is hereby admonished to comply with Rule of Court and Code of Civil Procedure. Any future violations may result in the court’s refusal to consider untimely filed papers.

B. REQUEST FOR JUDICIAL NOTICE

Plaintiff’s request for judicial notice of ten Technical Service Bulletins (“TSBs”) published on the website of the National Highway Traffic Safety Administration (“NHTSA”) is denied. Plaintiff does not cite authority permitting the court to take judicial notice of the truth of the TSBs’ contents. Plaintiff’s citation to *Shaw v. People ex rel. Chiang* (2009) 175 Cal.App.4th 577, 606 is inapposite because, there, the appellate court took judicial notice of a website showing the Department of Transportation’s structure and definition of “mass transportation.” The TSBs are information reported by Ford; the contents do not represent an “official act” of the NHTSA nor are they not reasonably subject to dispute. (See *Huitt v. Southern California Gas Co.* (2010) 188 Cal.App.4th 1586, 1605, fn.

10 [“Simply because information is on the Internet does not mean that it is not reasonably subject to dispute.”]; see also *Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 193 [taking judicial notice of existence, but not contents of webpage]]. While the court may take judicial notice of the fact that the TSBs were published on NHTSA’s website, the court cannot take judicial notice of the hearsay statements therein.

C. EVIDENTIARY OBJECTIONS

Ford submitted 40 evidentiary objections to the Declaration of Benjamin Fuchs. Mr. Fuchs’s declaration consists of his interpretation of Ford’s internal documents and TSBs, which are offered to establish Ford’s knowledge of the Transmission Defect in its F-150s, including the Subject Vehicle. Ford’s objections are limited to Mr. Fuchs’s interpretation and conclusions concerning these documents, rather than the documents themselves. Ford’s first objection to Mr. Fuchs’s declaration that recites the allegation of the Complaint is sustained. Plaintiff may not rely on his own allegations within the pleadings to oppose a motion for summary judgment. (*Cali Public Records Research, Inc. v. County of Yolo* (2016) 4 Cal.App.5th 150, 182). Ford’s remaining objections are sustained as Mr. Fuchs has not established his personal knowledge or foundation for his opinions or interpretations of the appended exhibits.

IV. ANALYSIS

Ford moves for MSA of Plaintiff’s fifth cause of action for fraudulent inducement-concealment on two grounds: (1) Plaintiff has no evidence that he made presentations, concerns, or repairs related to the Subject Vehicle’s transmission; and (2) Plaintiff has no evidence that Ford knew of and concealed the defect.

To obtain summary adjudication on the basis that a plaintiff has no evidence to establish an essential element of a claim, the movant must support the motion with discovery admissions or other admissible evidence demonstrating that “plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (*Aguilar, supra*, 25 Cal.4th at pp. 854-855). “[A] defendant cannot simply ‘argue’ that a plaintiff lacks sufficient evidence to establish [a required element of his or her claim]; the defendant must make an affirmative ‘showing’ that the plaintiff *cannot* do so.” (*Andrews v. Foster Wheeler LLC* (2006) 138 Cal.App.4th 96, 103, italics original). When relying on “factually devoid” discovery responses, the defendant must show that “discovery was sufficiently comprehensive, and plaintiffs’ responses so devoid of facts, as to lead to the inference that plaintiffs could not prove [a required element of their claim] upon a stringent review of the direct, circumstantial and inferential evidence contained in their [discovery responses].” (*Id.* at p. 107 [citing *Scheiding v. Dinwiddie Construction Co.* (1999) 69 Cal.App.4th 64, 83]).

Ford’s first argument that Plaintiff has no evidence demonstrating the existence of a transmission defect is unpersuasive. For purposes of establishing fraud, the fact that a product is still functioning as intended is immaterial because a fraud claim impugns the defendant’s conduct, not the safety or efficacy of the product. (*Khan v. Shiley* (1990) 217 Cal.App.3d 848, 857). Thus, “a manufacturer of a product may be liable for fraud when it conceals material product information from potential users.” (*Id.* at p. 858).

Ford next argues that Plaintiff has no evidence of its knowledge of the Transmission Defect and offers Plaintiff’s discovery responses in support.

On March 3, 2026, Plaintiff responded to Ford’s special interrogatories, which required Plaintiff to “state all facts”, “identify all persons”, and “identify all documents” supporting his fraudulent concealment claim. (Ford’s Separate Statement of Undisputed Material Facts [“SSUMF”], Nos. 19-21). Plaintiff responded by referencing his allegations within the Complaint, his 45-page document production, and vaguely referring to Ford’s “agents, representatives, and employees[.]”. (Declaration of Katherine P. Vilchez, Exh. H, pp. 18-22). The 45-page document production consists of the sales contract for the Subject Vehicle, various repair orders and invoices, the vehicle registration, Plaintiff’s proof of insurance, title to the Subject Vehicle, and an April 2025 letter notifying Plaintiff of needed brake repairs. (*Id.*, at Exh. I). Neither Plaintiff’s discovery responses nor the document

production proves the necessary elements to support a claim for fraudulent inducement-concealment. Ford therefore meets its initial burden.

In opposition, Plaintiff fails to meet his burden of demonstrating a triable issue of material fact. Plaintiff relies on the TSBs to demonstrate Ford’s prior knowledge of the Transmission Defects. As noted above, however, the TSBs are not proper matters for judicial notice and “[a] TSB is not and cannot fairly be construed by a trial court as an admission of a design or other defect, because TSBs are routinely issued to dealers to help diagnose and repair typical complaints.” (*American Honda Motor Co., Inc. v. Super. Ct.* (2011) 199 Cal.App.4th 1367, 1378). Plaintiff also relies on the Declaration of Benjamin Fuchs and counsel’s interpretation of the appended exhibits, but the court has sustained Ford’s objections to Mr. Fuchs’s characterization of the documents.

The exhibits attached to Mr. Fuchs’s declaration, on their face, do not establish that Ford knew of the shifting issues that purportedly affected Plaintiff’s 2018 F-150 with a 10R80 transmission. Many of the exhibits consist of communications and documents that predate or postdate Plaintiff’s March 2018 purchase of the F-150 or concern vehicles that do not have the Subject Vehicle’s 10R80 transmission. (See e.g., Declaration of Benjamin Fuchs, Exhs. 4-8, 10-13, 16-18). Indeed, some of the exhibits do not even identify the year, model, or transmission of the vehicles. (See e.g., *Id.* at Exhs. 5-8, 12-15, 24-25; *id.* at Exh. 9 [noting change to seals at an unspecified date solved cold leakage issues]). While an email dated September 20, 2018 stated that harsh shifting was a number one issue in F-150s that began in 2017 and continued to 2018, the September 2017 correspondence does not indicate that the harsh shifting was attributable to issues identified in earlier correspondence. (*Id.* at Exh. 21). Plaintiff does not identify any exhibit that, when taken together, demonstrates Ford knew of the Transmission Defect in 2018 F-150s before Plaintiff purchased the Subject Vehicle in March 2018. (*Quantum Cooking Concepts, Inc. v. LV Assocs., Inc.* (2011) 197 Cal.App.4th 927, 934 [trial court not required to “comb the record and the law for factual and legal support that a party has failed to identify or provide”]; *Sharabianlou v. Karp* (2010) 181 Cal.App.4th 1133, 1149 [“we will not scour the record on our own in search of supporting evidence”]).

Given the foregoing, the court Ford’s motion for summary adjudication of the fifth cause of action for fraudulent concealment – inducement.

V. CONCLUSION

Based on the foregoing, the Court GRANTS Ford’s MSA of the fifth cause of action for fraudulent concealment-inducement. The Court will prepare the Order.

Calendar Line # 4

Case Name Discovery Bank vs Andrew Little

Case No. 25CV463796

Motion to Vacate Judgment and Enter Dismissal

I. BACKGROUND

This credit card collection case stems from Discovery Bank (“Bank”)’s Complaint filed on April 18, 2025 alleging a single causes of action for breach of contract against Defendant Andrew Little (“Little”). On June 17, 2025, a basic entry of default was entered against the Defendant Little. On November 14, 2025, the Honorable Beth McGowen authorized a default judgment in favor of the Bank in the amount of \$8,536.79 against Defendant Little.

On March 12, 2026, Plaintiff Bank filed this motion to vacate judgment and enter dismissal of the case. The motion was accompanied by a proof of service indicating mail service.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 24, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the moving papers, including: notice of motion (totaling 3 pages); Declaration of Miranda Neal and attached Exhibit A (totaling 4 pages); proof of services; and the pleadings.

II. LEGAL STANDARD

A. PROCEDURAL VIOLATION

The Court notes procedural violation by the plaintiff for failure to file a memorandum of points and authorizes in support of its motion as required under California Rule of Court, rule 3.1113(a)-(b). The court may construe the absence of a memorandum as an admission that the motion is not meritorious and cause for its denial. (*Id.*).

Here, the Court balances the totality of circumstances, including judicial economy to avoid the expenditure of any further judicial resources, the court will look past the procedural violations and consider the motion on its merits. However, the plaintiff is hereby admonished to comply with Rule of Court and Code of Civil Procedure. Any future violations may result in the court's refusal to consider deficient papers.

B. MOTION TO SET ASIDE

Code of Civil Procedure section § 473(b) provides for both discretionary and mandatory relief. In terms of discretionary relief section 473(b), in pertinent part, reads as follows:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . .

The mandatory provision of section 473(b) reads, in pertinent part, as follows:

Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.

The general underlying purpose is to promote the determination of actions on their merits. (*Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830). Under this statute, an application for relief must be made no more than six months after entry of the judgment, dismissal, order, or other proceeding from which relief is sought and must be accompanied by an affidavit of fault attesting to the mistake, inadvertence, surprise or neglect of the moving party or its attorney. (Code of Civ. Proc., § 473(b); *English v. IKON Business Solutions* (2001) 94 Cal.App.4th 130, 143).

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III. ANALYSIS

Here, Plaintiff Bank filed this motion seeking to vacate the judgment and dismiss the case. Although it fails to cite a specific statute, the Court finds that based on the substance of the motion and evidence provided, the motion to set aside is based on Code of Civil Procedure section 473(b), based on the plaintiff counsel's mistake and inadvertence. Plaintiff counsel attests *after* that the default judgment entered on November 14, 2025 in the amount of \$8,536.79 against the defendant and in favor of the Bank, Plaintiff discovered that Defendant Little had previously filed for bankruptcy. (Declaration of Neal ¶ 2; Exh. A). Plaintiff's counsel attaches as Exhibit A and copy of the Pacer Bankruptcy Report as evidence. The bankruptcy report states a Chapter 7 bankruptcy case (case no. 25-51684) was filed by the defendant on October 30, 2025, which is approximately two weeks before a final entry of default was tended in this matter. (Exh. A). This motion was made within 120 days of the entry of default judgment, and the Court finds the motion timely.

The motion is unopposed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

Plaintiff's counsel asserts: "A Request for Dismissal is submitted with this declaration, for filing after judgment has been set aside and vacated." (Declaration of Neal ¶ 3). The Court notes that no such dismissal was attached to the declaration or Plaintiff's motion.

IV. CONCLUSION

Based on the foregoing, the motion being unopposed, the Court GRANTS the motion to vacate the default judgment. The Court will prepare the formal Order.

The Court ORDERS the plaintiff to file a dismissal within fifteen (15) days of this hearing.

Calendar Line # 5

Case Name American Express National Bank vs Maryam Rafipour

Case No. 25CV465371

Motion to Set Aside Default Judgment

I. BACKGROUND

This credit card collections case stems from Plaintiff America Express National Bank ("Bank")'s Complaint filed on May 7, 2025 alleging two causes of action for breach of contract against Defendant Maryam Rafipour ("Rafipour"). On October 6, 2025, a basic entry of default was entered against the Defendant. On March 27, 2026, the Honorable Roberta Hayashi authorized a default judgment in favor of the Bank in the amount of \$53,198.27 against Defendant Rafipour, while her motion for relief of default and default judgment was filed.

On December 15, 2025, Defendant Rafipour filed a motion for relief to vacate the default and judgment. The motion was accompanied by a filed proof of service indicating mail service to defense counsel on that same day. The court notes that while the proof of service is file stamped for December 15, 2025, the process server did not execute the date.

The motion is unopposed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489). Plaintiff Bank filed a non-opposition to the defendant's motion seeking to vacate the default judgment.

Additionally, Plaintiff Bank requested a dismissal of the second cause of action alleged in its Complaint based on verification that there was identify theft, but requests that the first cause of action remain pending further investigation and seeks a further case management conference approximately 180 days out.

The Court has carefully reviewed the moving papers, including: notice and memorandum of points and authorities in support of the defendant's motion to vacate the default judgment and attached Exhibits A-C (totaling 17 pages); proposed Answers (Exhibit C, at p. 14-17); Declaration of Maryam Rafipour (totaling 2 pages); Plaintiff's Non-Opposition (totaling 2 pages); proof of services; and the pleadings.

I. LEGAL STANDARD

A. CODE OF CIVIL PROCEDURE SECTION 473(B)

Code of Civil Procedure section § 473(b) provides for both discretionary and mandatory relief. In terms of discretionary relief section 473(b), in pertinent part, reads as follows:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . .

The mandatory provision of section 473(b) reads, in pertinent part, as follows:

Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.

The general underlying purpose is to promote the determination of actions on their merits. (*Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830). Under this statute, an application for relief must be made no more than six months after entry of the judgment, dismissal, order, or other proceeding from which relief is sought and must be accompanied by an affidavit of fault attesting to the mistake, inadvertence, surprise or neglect of the moving party or its attorney. (Code of Civ. Proc., § 473(b); *English v. IKON Business Solutions* (2001) 94 Cal.App.4th 130, 143).

B. CODE OF CIVIL PROCEDURE 473.5

Code of Civil Procedure section 473.5(a) provides: "When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered."

C. CODE OF CIVIL PROCEDURE 473(D)

Under Code of Civil Procedure section 473(d), “[t]he court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.”

III. ANALYSIS

Here, the defendant in pro per seeks to vacate the judgment under Code of Civil Procedure section 473(c)(2) and states the grounds as clerical mistakes in the judgment. (Motion, p. 1-3). This section is miscited and refers to section 473(d). However, the Court notes that there is no clerical mistake, thus defense cite the wrong section of the code, and seeks to set aside default. However, based on the substance of the motion, the Court notes that Code of Civil Procedure section 473.5 would apply, as the defendant argues that service was not properly effected. (*Id.*, at p. 2). Defendant Rafipour avers that the substituted service does not match her or anyone in her household who could accept service. (*Id.*).

“[A]ctual notice in section 473.5 means genuine knowledge of the party litigant. . . [A]ctual knowledge has been strictly construed, with the aim of implementing the policy of liberally granting relief so that cases may be resolved on their merits.” (*Ellard v. Conway* (2001) 94 Cal.App.4th 540, 547 [Citations Omitted]). “[A] party can make a motion showing a lack of actual notice not caused by avoidance of service or inexcusable neglect . . .” (*Trackman v. Kenney* (2010) 187 Cal. App. 4th 175, 180). “[I]t does not require a showing that plaintiff did anything improper...[T]he defaulting defendant simply asserts that he or she did not have actual notice’.” (*Id.*).

The Court finds that the motion is timely as the motion to vacate was filed on December 15, 2025, a little after two months after the initial entry of default pm October 6, 2025, and before Judge Hayashi then granted default judgment on March 27, 2026, after the defendant already filed her motion.

Based on the unopposed motion to vacate the default judgment, timeliness, and the Plaintiff’s non-opposition and request to dismiss the second cause of action, the Court finds there is good cause to vacate the entry of default and default judgment.

IV. CONCLUSION

Based on the foregoing, the Plaintiff’s non-opposition to the defendant’s motion to vacate the default judgment, the Court GRANTS the motion. IT IS SO ORDERED that the entry of default and default judgment is hereby VACATED.

Defendant is ORDERED to file her Answer within thirty (30) days of this hearing.

The Plaintiff’s request to dismiss the second cause of action without prejudice is GRANTED. The Court will prepare the formal Order.

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Calendar Line # 6
Case Name Rosette Simon et al vs EAH Housing Inc. et al
Case No. 26CV484388
Demurrer
<u>I. BACKGROUND</u> On July 8, 2026, Defendant EAH Housing Inc. (“EAH”), filed a demurrer to Plaintiffs Rosette Simon and Shaquille Ceesay’s First Amended Complaint (“FAC”). The demurrer was accompanied by a proof of electronic mail and mail service upon the plaintiffs on July 8, 2026. The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 24, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (<i>Hahn v. Mirda</i> (2007) 147 Cal.App.4th 740, 747 (<i>Hahn</i>)). When considering demurrers, courts accept all well pleaded facts as true. (<i>Fox v. JAMDAT Mobile, Inc.</i> (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (<i>Piccinini v. Cal. Emergency Management Agency</i> (2014) 226 Cal.App.4th 685, 688, citing <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318 (<i>Blank</i>)). <u>III. ANALYSIS</u> Here, Defendant EAH avers that the FAC as currently drafted, does not state facts sufficient to allege causes of actions against EAH. Defense has attempted to meet-and-confer with the plaintiffs regarding a possible amended complaint. Per defense the plaintiffs have refused to amend the FACT. (Declaration of Sera ¶¶ 4-6, Exhibit B). THE FAC filed on May 8, 2026 is handwritten and alleges negligence against the defendant pertaining to claims, including, but not limited to a breach of implied warranty of habitability, harassment and retaliation, failure to return rental deposit, and seeks \$15,00,000.00 in damages. Applying section 431.10, the Court considers that all material facts are properly pleaded, but not contentions, deductions, or conclusion of the law. The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 24, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). <u>IV. CONCLUSION</u> Based on the foregoing, the unopposed demurrer the Court SUSTAINS Defendant EAH’s demurrer with twenty (20) day leave to amend from the date of this hearing. The Court will prepare the formal Order.

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Calendar Line # 7
Case Name Keith Lyle vs Ford Motor Company et al
Case No. 24CV449313
Motion for Summary Judgment/Adjudication Before the court is defendant Ford Motor Company’s motion for summary judgment/adjudication against plaintiff Keith Lyle. Pursuant to California Rule of Court, rule 3.1308, the court issues its tentative ruling as follows. I. <u>BACKGROUND</u> A. <u>FACTUAL BACKGROUND</u> Plaintiff Keith Lyle (“Lyle”) filed a Complaint on October 11, 2024, against defendants Ford Motor Company (“Ford”) and Heritage Ford Inc., seeking claims under the Song-Beverly Consumer Warranty Act (Civ. Code, § 1790, et seq; the “Act”). According to the Complaint, Plaintiff purchased a 2016 Ford Fusion, vehicle identification number: 3FA6P0SU7GR173049 under warranty (the “Subject Vehicle”). (Complaint, ¶¶ 10-11). Before Plaintiff purchased the vehicle, Ford knew that vehicles had engine defects, electrical defects, hybrid battery defects, among other defects and non-conformities. (<i>Id.</i> at ¶ 15). Plaintiff alleges the following six causes of action against Ford: (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2, subdivision (a)(3); (4) breach of the implied warranty of merchantability; (5) negligent repair; and (6) fraudulent inducement – concealment. Ford filed the instant motion for motion for summary judgment (“MSJ”)/adjudication (“MSA”) to causes of actions one through four, and six on March 23, 2026 that was accompanied by a proof of service indicating electronic mail service to the plaintiff’s counsel. B. <u>RELEVANT PROCEDURAL BACKGROUND</u> On March 23, 2026, defendant Ford Motor Company filed this Motion for Summary Judgment to the Plaintiff’s Complaint, or, alternatively, Motion for Summary Adjudication (“MSA”) as to plaintiff’s causes of action nos. one through four as the claims are time-barred and the sixth cause of action for fraudulent inducement-concealment as time barred. (Defendant’s motion, p. 2). The motion was accompanied by proof of electronic service on plaintiff’s counsel on that same day. Defendant received a hearing date of November 19, 2026, which was after the July 13, 2026 trial date originally set in this matter. On March 25, 2026, Defendant filed an ex parte application seeking to advance the hearing to Friday June 12, 2026, with a proof of service dated March 24. The Court granted the motion to advance the hearing and continued the trial to January 4, 2027. However, June 12 is a non-motion and calendar day and the Court is unable to hear cases, and the matter was moved to the closest motion date of June 11. Plaintiff’s counsel was served with the defendant’s ex parte application and notice of non-opposition on May 29. Given this posture, although the motion was unopposed, the court continued the motion to August 6, 2026 to allow for proper notice. On June 11, 2026, Defendant electronically served the plaintiff with an amend notice of the August 6, 2026 hearing date. The minute Order from June 11, 2026 also reflects that plaintiff’s counsel was present. The Court has carefully reviewed the Defendant’s notice of motion (totaling 4 pages); memorandum of points of points and authorities (totaling 22 pages); Separate Statement (totaling 42 page); Declaration of Katherine P. Vilchez and Exhibits A-I in support of the defendant’s motion for summary adjudication (totaling 120 pages); Declaration of Erich Kemnitz and attached Exhibits A-B in support of the defendant’s motion (totaling 5 pages); ex parte application to advance the MSA date; Amended Notice for MSA (totaling 3 pages); Notice of Non-opposition to the MSJ (totaling 4 pages); Amended Notice of the August 6, 2026 hearing date (totaling 4 pages); proof of services; and the pleadings.

C. THE MOTION HAS BEEN AND CONTINUES TO BE UNOPPOSED

On June 11, 2026, the Court noted that the motion was unopposed as the plaintiff failed to file opposition papers. The case was continued to this hearing date and proper amended notice in was filed.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 17, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

Plaintiff filed an untimely opposition on August 4, 2026.

II. LEGAL STANDARD

MOTION FOR SUMMARY JUDGMENT

Pursuant to Code of Civil Procedure section 437c, subdivision (c), a motion for summary judgment or summary adjudication “shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c)).

“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850).

“There is a genuine issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th at p. 845, fn. omitted). Throughout the process, the trial court “must consider all of the evidence and all of the inferences drawn therefrom” and view the evidence and inferences in the light most favorable to the opposing party. (*Id.* at p. 844). The court cannot weigh the evidence on summary judgment or evaluate the credibility of declarants. (*Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 540).

Similarly, “[a] party may seek summary adjudication on whether a cause of action, affirmative defense, or punitive damages claim has merit or whether a defendant owed a duty to a plaintiff. [Citation]. ‘A motion for summary adjudication shall proceed in all procedural respects as a motion for summary judgment.’ [Citation].” (*California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630).

III. ANALYSIS

Ford moves for MSJ on the plaintiff’s complaint or in the alternative MSA on the plaintiff’s cause of actions one through four and the sixth cause of action.

To obtain summary adjudication on the basis that a plaintiff has no evidence to establish an essential element of a claim, the movant must support the motion with discovery admissions or other admissible evidence demonstrating that “plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (*Aguilar, supra*, 25 Cal.4th at pp. 854-855). “[A] defendant cannot simply ‘argue’ that a plaintiff lacks sufficient evidence to establish [a required element of his or her claim]; the defendant must make an affirmative ‘showing’ that the plaintiff *cannot* do so.” (*Andrews v. Foster Wheeler LLC* (2006) 138 Cal.App.4th 96, 103, *italics original*). When relying on “factually devoid” discovery responses, the defendant must show that “discovery was sufficiently comprehensive, and plaintiffs’ responses so devoid of facts, as to lead to the inference that plaintiffs could not prove [a required element of their

claim] upon a stringent review of the direct, circumstantial and inferential evidence contained in their [discovery responses].” (*Id.* at p. 107 [citing *Scheidig v. Dinwiddie Construction Co.* (1999) 69 Cal.App.4th 64, 83]).

Ford’s first argument that Plaintiff has no evidence demonstrating the existence of a transmission defect is unpersuasive. For purposes of establishing fraud, the fact that a product is still functioning as intended is immaterial because a fraud claim impugns the defendant’s conduct, not the safety or efficacy of the product. (*Khan v. Shiley* (1990) 217 Cal.App.3d 848, 857). Thus, “a manufacturer of a product may be liable for fraud when it conceals material product information from potential users.” (*Id.* at p. 858).

Ford avers that the plaintiff is time barred from bring his claims under causes of actions on through four and six. Defendant emphasizes that the plaintiff failed to file a complaint until nine years after purchasing the Subject Vehicle. (Defendant’s motion, p. 15). As to the sixth cause of action for fraudulent concealment-inducement Ford argues that there are no warranty presentations. Even if there was a tolling, the plaintiff would still be time barred.

IV. CONCLUSION

Based on the foregoing, and the motion being unopposed, the Court GRANTS Ford’s motion for summary judgment. The Court will prepare the Order.